

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

2025CUPP037723: GARY SILVERMAN vs ORKIN PEST CONTROL

09/21/2026 in Department 43

Motion to be Relieved as Counsel for Plaintiff

The morning calendar in courtroom 43 will normally begin at 8:45. Please arrive for your hearing no later than 8:30 a.m. The door will be opened before the calendar is called.

The Court allows remote appearances by Zoom. Refer to the Courtroom 43 webpage for more information about remote appearances. For Zoom appearances, all counsel appearing by Zoom must register no later than 3:00 p.m. the court day before the hearing. If appearing by Zoom, log into the hearing no later than 8:30 a.m. The Court will transfer you to the meeting room when the calendar begins. Additional instructions can be found on the Court website. When you log in to Zoom, be sure that your name and the case name are used as your Zoom name.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling you can fax notice to Judge Coats's secretary, Ms. Brantner at 805-477-8790, stating that you submit on the tentative. Or you may email Courtroom43@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending a fax or email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motion: Motion of Barry Zelner to be Relieved as Counsel for Plaintiff

Tentative Ruling: The Motion of Barry Zelner to be Relieved as Counsel for Plaintiff is DENIED without prejudice.

The declaration of Barry Zelner is not on the mandatory judicial council form MC-052. Furthermore, Neither the motion, declaration or the proposed order make note of the Order to Show Cause hearing November 23, 2026, regarding why the court should not vacate the stay and dismiss the case pursuant to Local Rule 3.17 for failure to comply with the Court's order of August 20, 2025 to arbitrate the case.

For the foregoing reasons, the motion is denied without prejudice.

Mr. Zelner is ordered to serve notice of the Court's ruling.